MAHARASHTRA NATIONAL LAW UNIVERSITY

CHHATRAPTI SAMBHAJINAGAR

LL.D. PROGRESS REPORT

- **Name of Research Scholar:** Prof. (Dr.) Santosh Kakade
- **Name of Research Supervisor:** Prof. (Dr.) K. V. S. Sarma (Vice-Chancellor, NLUJA, Assam)
- **Registration No.:** 3 / LLD / 2021-24
- **Title of the Research Topic (Approved): "Legal Regime Governing Healthcare Disputes Resolution Mechanism"**
- **Brief Overview:** I am formally admitted to the academic program of LL.D. (2021-24) with admission letter no. MNLUA/ADMN/2022/27, dated 18 January 2022, as per the LL.D. Regulations VII of MNLUA 2020. As per the requirement, I have submitted 3 progress reports after making due presentations before the committees of experts on **31-07-2023**, **09-11-2023**, and **18-04-2024**. Following the constructive suggestions from the honourable experts, I have modified the research proposal and methodology to ensure a robust doctrinal study.

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1. Scheme of Research Study

The research focuses on creating a specialized legislative architecture for healthcare disputes in India. It transitionally moves from the current adversarial, fault-based system under the Consumer Protection Act to a more efficient, multi-tiered resolution regime.

- **Final Title:** "Legal Regime Governing Healthcare Disputes Resolution Mechanism"

2. Tentative Chapterization

1. **Chapter I:** Introduction and Jurisprudential Foundation (Right to Health vs. Liability).
2. **Chapter II:** The Dualistic Consumer: Socio-Legal Analysis of Urban vs. Rural Patient Grievances.
3. **Chapter III:** The Consumer Protection Act, 2019: Critical Analysis of the "Healthcare Service" Controversy.
4. **Chapter IV:** Administrative Regulation: Role of the National Medical Commission (NMC) Act, 2019.
5. **Chapter V:** Global Comparative Frameworks: Legislative Models in UK, USA, and Europe.
6. **Chapter VI:** The "NMC Resolution" Model & Innovative Legal Regimes for India.
7. **Chapter VII:** Conclusion and Recommendations: Draft of the Healthcare Dispute Resolution Bill.

3. List of Books and Journals Referred (Latest Publications)

Books (Select 10):

1. *Medical Negligence* by Charles J. Lewis (9th Ed., 2023).
2. *Healthcare Law and Ethics* by Jonathan Herring (2022).
3. *The Law of Medical Negligence* by Dr. Jagdish Singh (2021).
4. *Mason and McCall Smith's Law and Medical Ethics* (11th Ed.).
5. *P.S.A. Pillai's Law of Tort* (Revised Ed., 2022).
6. *Consumer Protection Law and Practice* by R.K. Bangia (2023).
7. *Medical Law in India* by Mohammad Akram (2022).
8. *Healthcare ADR & Mediation* by Nadja Alexander.
9. *The Patient as Consumer* by Margaret Brazier.

10. *Comparative Medical Liability* by Helmut Koziol.

Journals (Select 10):

1. *Journal of Patient Safety and Risk Management* (SAGE).
2. *Indian Journal of Medical Ethics (IJME)*.
3. *The Lancet* (Health Policy and Law Series).
4. *Supreme Court Cases (SCC)* / *All India Reporter (AIR)*.
5. *Medical Law Review* (Oxford Academic).
6. *Journal of Law and Medicine*.
7. *International Journal of Healthcare Management*.
8. *Journal of Forensic and Legal Medicine*.
9. *NMC Ethics Board Quarterly Reports*.
10. *European Journal of Health Law*.

4. Research Library Visited

- Symbiosis Law School (SLS), Pune – Extensive use of the library's physical and digital (EBSCO, HeinOnline, Westlaw) resources.

5. Research Methodology

- **Primary Focus:** Doctrinal Research.
- **Approach:** The study primarily utilizes doctrinal data, involving the analysis of statutes, case laws, and legal principles to suggest a new "Legal Regime." It employs a comparative and analytical lens to bridge current legislative gaps.

6. Relevant Research Projects

- **SPARC Project (Project 2595):** Actively participated and contributed as a **Medicolegal Expert** in the Focus Group Discussion on *"Legal and Ethical Framework for the Use of Artificial Intelligence in Healthcare sector with special reference to Patient Safety"* organized by SLS, Pune (MoE-GoI Project). This contribution is highly relevant to the LL.D. topic regarding evolving healthcare disputes.

7. Participation in Conferences

Presented two research papers at the **2nd International Conference on Global Criminology and Victimology (ICGCV)-2025** at NLUJA, Guwahati, Assam (August 2025):

- **Paper 1:** *"Legal Challenges and Frameworks Governing the Use of Dark Web Monitoring Tools in Crime Prevention and Cyber Threat Detection."*
- **Paper 2:** *"Integrating Retired Law Enforcement Professionals into Multi-Sectoral Violence Prevention Strategies: A Public Health Approach and the Case for a Legal Regime."*

8. Research Publications

- Research articles based on the thesis chapters are currently **in the process of being published** in UGC-Care listed/Scopus indexed journals.

9. Submission Timeline

- **Probable date of submission of thesis:** 30 April 2026.

10. Particulars of Fees

- Fees have been paid according to the prescribed schedule. I undertake to clear any further dues as per the instructions from the University.

11. Current Professional Affiliation

- **Institution:** Symbiosis Law School, Symbiosis International (Deemed University), Pune.
- **Designation:** Distinguished Visiting Professor / Visiting Medicolegal Expert and Professional Medicolegal Consultant.

12. Contact Details

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Date: 19/01/2026 **Signature of Research Scholar**

Remarks of Research Supervisor :

Date: 19/01/2026 **Signature of Research Supervisor**